

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Santosh Prakash	Team: Squad #08	CCRB Case #: 201701899	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 12/28/2016 5:11 PM	Location of Incident: Inside the 76th Precinct stationhouse; at West 9th Street and Hamilton Avenue	18 Mo. SOL 6/28/2018	Precinct: 76		
Date/Time CV Reported Sat, 03/11/2017 9:49 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 03/11/2017 9:49 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jamal Jamison	28896	960724	076 PCT
2. LT Robert Mosca	00000	939081	076 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Gwendolyn Bishop	04203	952470	076 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Robert Mosca	Discourtesy: On December 28, 2016, at the 76th Precinct stationhouse, Lieutenant Robert Mosca spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Jamal Jamison	Discourtesy: On March 6, 2017, at West 9th Street and Hamilton Avenue, Police Officer Jamal Jamison spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Jamal Jamison	Abuse: On March 6, 2017, at West 9th Street and Hamilton Avenue, Police Officer Jamal Jamison frisked § 87(2)(b)	C . Unsubstantiated
D . POM Jamal Jamison	Abuse: On March 6, 2017, at West 9th Street and Hamilton Avenue, Police Officer Jamal Jamison searched the vehicle in which § 87(2)(b) was an occupant.	D . Unsubstantiated
E . POM Jamal Jamison	Abuse: On March 6, 2017, at West 9th Street and Hamilton Avenue, Police Officer Jamal Jamison threatened to arrest § 87(2)(b)	E . Unsubstantiated

Case Summary

On December 28, 2016, at approximately 5:11 pm, § 87(2)(b) was arrested by PO Jamal Jamieson for § 87(2)(b) and removed to the 76th Precinct stationhouse; he was also subsequently re-arrested for § 87(2)(b). While lodged at the stationhouse, desk officer Lt. Robert Mosca allegedly called § 87(2)(b) a “fucking asshole.” **(Allegation A)**

Several months later, on March 6, 2017, approximately 8:00 pm, at West 9th Street and Hamilton Avenue, § 87(2)(b) was stopped again by PO Jamal Jamison and his partner PO Gwendolyn Bishop. Recognizing him from the December arrest, PO Jamison allegedly engaged § 87(2)(b) by stating: “I told you I’d see you again motherfucker –I hope your license is valid.” **(Allegation B)** After ordering him to exit, PO Jamison then allegedly frisked § 87(2)(b) and searched the vehicle. **(Allegations C, D)** As he did so, PO Bishop told § 87(2)(b) that his window tints were in violation. When § 87(2)(b) challenged this, PO Jamison allegedly told § 87(2)(b) to “shut the fuck up” or he would be arrested. **(Allegation E)** § 87(2)(b) was ultimately released with a summons for § 87(2)(b).

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation. A notice of claim has not been filed in regards to either incident.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) filed two prior CCRB complaints. § 87(2)(b)
- Lt. Mosca has been a member of service for 11 years; he has been a subject in six prior CCRB complaints, on 11 allegations, none of which were substantiated. § 87(2)(g)
- PO Jamison has been a member of service for 1 year; this is the first CCRB complaint against him.

Findings and Recommendations

Allegation A: On December 28, 2016, at the 76th Precinct stationhouse, Lieutenant Robert Mosca spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) was arrested by PO Jamison for § 87(2)(b) and lodged in a cell at the 76th Precinct stationhouse, where he requested medical

attention, and where he was ultimately re-arrested and charged with § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) testified that he began experiencing chest pains soon after he was lodged and asked PO Jamison for medical attention, who went to the front desk and notified Lt. Mosca. § 87(2)(b) stated that the holding pen was separated from the front desk area by a glass door; his cell, which was barred, was directly behind this door, such that he could reach through the bars and make contact with it. § 87(2)(b) was able to hear what was happening by the front desk, and alleged that Lt. Mosca stated the following to PO Jamison when notified: “He’s okay, don’t fuckin’ worry about it. He’s a fucking asshole. He has a record § 87(2)(b), he’s going through the system.” § 87(2)(b) yelled back: “You’re not a doctor, I need an ambulance.” The officers did not respond. After several minutes passed without them acknowledging him, § 87(2)(b) reached through the cell bars and knocked on the glass door to get the officers’ attention. When they continued to ignore him, § 87(2)(b) started kicking against the cell bars for approximately two minutes, until PO Jamison returned to the holding area and said an ambulance was coming. Approximately twenty minutes later, § 87(2)(b) was removed to the hospital. Upon returning to the stationhouse from the hospital, § 87(2)(b) was advised by PO Jamison that he was being charged with § 87(2)(b). § 87(2)(b) testified that the glass door was already cracked at the time he was lodged; it sustained no further damage when he had knocked on it before going to the hospital. § 87(2)(b) was alone in his cell both before the removal and after returning. (BR01)

Lt. Mosca, who noted nothing remarkable about § 87(2)(b) when first brought to the desk, testified that § 87(2)(b) suddenly became vocally irate after being lodged, at which time he acted as follows: § 87(2)(b) stuck his arm out through the cell gate bars and repeatedly banged on the glass door, which was within his reaching distance, causing the pane to shatter in its entirety. Lt. Mosca did not know what § 87(2)(b) was yelling about and had no idea what he wanted or why he did this; he described § 87(2)(b) shift as unprovoked and did not know what prompted the change. Lt. Mosca was not aware of § 87(2)(b) requesting medical attention at any point that night. When the door shattered, Lt. Mosca immediately called for an ambulance as a precaution, in case § 87(2)(b) had sustained injury, and then requested assistance from ESU as an additional measure, in case § 87(2)(b) – now regarded as an EDP – needed to be restrained. § 87(2)(b) was ultimately removed to the hospital without further incident, but Lt. Mosca did not recall for what reason. Lt. Mosca stated that he never cursed at § 87(2)(b) directly, but acknowledged using profanity within earshot of § 87(2)(b). He stated that when ESU arrived, he told them to “be careful, he’s acting like an asshole.” Lt. Mosca believed that § 87(2)(b) likely heard him make this remark. Lt. Mosca denied calling § 87(2)(b) a “fucking asshole.” (BR02) Lt. Mosca made the following entry in his memo book: “Incident with prisoner § 87(2)(b) intentionally damaged pen door.” (BR03)

PO Jamison acknowledged that § 87(2)(b) requested medical attention and stated that he went to notify Lt. Mosca, who instructed him to call an ambulance and ask § 87(2)(b) if he was hungry. But at the same time, § 87(2)(b) suddenly “snapped” – he started cursing and banging on the glass door. PO Jamison told § 87(2)(b) that the ambulance was coming and tried to calm him down. However, § 87(2)(b) continued to bang on the door, stating that Lt. Mosca

dangerous in the vehicle and ordered him to exit. PO Jamison then frisked § 87(2)(b) and ordered him to the rear with PO Bishop, at which point PO Jamison searched § 87(2)(b) vehicle for a few minutes without consent: he went in through all of the doors, looked under the front and rear seats, and inside the center console and glove compartment. As PO Jamison was searching, PO Bishop told § 87(2)(b) that his rear tints were in violation. § 87(2)(b) explained that the tint gradient was legal in Vermont, where the vehicle was registered. Hearing this, PO Jamison stepped out and told § 87(2)(b) to "shut the fuck up" or he would be arrested. After PO Jamison searched the vehicle, PO Bishop wrote him the summons and the officers left the scene. (BR01)

PO Jamison testified that the officers stopped § 87(2)(b) after PO Bishop observed him travelling on West 9th Street with tinted windows. As they were pulling him over, PO § 87(2)(b) [sic] noticed § 87(2)(b) Vermont license plates and advised PO Bishop that he had previously stopped the same vehicle. Referring to information he learned during the December arrest, he also advised PO Bishop that the driver had a "rap sheet" § 87(2)(b), and warned her to be careful. PO Jamison stated that despite this concern, the stop – which PO Bishop took the lead on – was entirely routine and conducted without incident, stating that: he remained on the passenger side as PO Bishop dealt with § 87(2)(b) on the driver's side; that he never once interacted with § 87(2)(b) who did not indicate that he recognized him; that § 87(2)(b) was never removed from the vehicle or frisked; and that he never searched the vehicle. (BR04)

PO Bishop had no independent recollection of the incident in question, beyond confirming – on the basis of the documentation – that she conducted the vehicle stop and issued the summons. PO Bishop did not recall § 87(2)(b) being frisked or his vehicle being searched and said she would have remembered had the officers done so. PO Bishop did not recall PO Jamison engaging verbally with § 87(2)(b) in the manner alleged. (BR08)

The officers' memo book entries only noted that § 87(2)(b) vehicle was stopped and that a summons was issued for high-gradient tints. (BR05, BR09)

§ 87(2)(g)

_____.

It is therefore recommended that **Allegations B** through **E** be closed as **Unsubstantiated**.

Squad: 08

Investigator: _____
Signature Print Date

Squad Leader: _____

Title/Signature

Print

Date